

No. 03-17-00812-CV

**IN THE COURT OF APPEALS
FOR THE THIRD JUDICIAL DISTRICT
AUSTIN, TEXAS**

FILED IN
3rd COURT OF APPEALS
AUSTIN, TEXAS
5/14/2018 12:45:54 PM

**AHMAD ZAATARI, MARWA ZAATARI, JENNIFER GIBSON HEBERT,
JOSEPH "MIKE" HEBERT, LINDSAY REDWINE, RAS REDWINE VI,
AND TIM KLITCH,**

Plaintiffs-Appellants,

&

STATE OF TEXAS,

Intervenor-Appellees

v.

**CITY OF AUSTIN, TEXAS AND
STEVE ADLER, MAYOR OF THE CITY OF AUSTIN**

Defendant-Appellees.

*On Appeal from the 53rd Judicial District, Travis County, Texas
Cause No. D-1-GN-16-00260-CV*

**MOTION OF RESIDENT PRACTICING ATTORNEY IN SUPPORT
OF MOTION OF NON-RESIDENT ATTORNEY,
CHRISTINA SANDEFUR FOR ADMISSION *PRO HAC VICE***

MATTHEW R. MILLER
Texas Bar No. 24046444
CHRISTINA SANDEFUR
Pro hac vice application pending
litigation@goldwaterinstitute.org
**Scharf-Norton Center for
Constitutional Litigation at the
GOLDWATER INSTITUTE**
500 East Coronado Road
Phoenix, Arizona 85004
Phone: (602) 256-5000
Fax: (602) 256-7045

Pursuant to Tex. R. Govern. Bar Adm'n XIX(b), Matthew R. Miller ("Movant"), files this Motion of Resident Practicing Texas Attorney in Support of the Motion by Non-Resident Attorney Christina Sandefur for Admission *Pro Hac Vice*, and states as follows:

1. Movant is an active member in good standing of the Texas State Bar. Mr. Miller's Texas State Bar number is 24046444. Movant is a resident attorney who practices at the Scharf-Norton Center for Constitutional Litigation at the GOLDWATR INSTITUTE, 500 E. Coronado Rd., Phoenix, Arizona 85004, (602) 256-5000, Fax (602) 256-7045.

2. Christina Sandefur ("Applicant") has sought permission to appear *Pro Hac Vice* as counsel for *Amicus Curiae* the Goldwater Institute, in the above-titled and numbered cause of action. Applicant will be associated with Movant in this proceeding.

3. Movant finds Applicant, who is an active member in good standing of the State of Arizona (027983), and who is admitted to practice before the U.S. District Court of Arizona and the U.S. Courts of Appeal for the Ninth Circuit and the U.S. Supreme Court, to be a reputable attorney, and recommends that Applicant be granted permission to participate in the above-entitled and numbered proceedings before the Court.

WHEREFORE, Movant respectfully requests that the Court grant Applicant's motion and enter an order to participate as one of the attorneys for *Amicus Curiae* the Goldwater Institute, in the above-titled and numbered cause of action.

Respectfully Submitted
this 14th day of May, 2018,

/s/ Matthew R. Miller
MATTHEW R. MILLER
Texas Bar No. 24046444
litigation@goldwaterinstitute.org
**Scharf-Norton Center for
Constitutional Litigation at the
GOLDWATER INSTITUTE**
500 East Coronado Road
Phoenix, Arizona 85004
Phone: (602) 256-5000
Fax: (602) 256-7045

CERTIFICATE OF CONFERENCE

As required by Texas Rule of Appellate Procedure 10.1(a)(5), I certify that I have conferred, or made a reasonable attempt to confer, with all other parties, which are listed below, about the merits of this motion with the following results:

Does not oppose the motion:

Robert Henneke
Chance Weldon
Texas Public Policy Foundation
901 Congress Avenue
Austin, Texas 78701
(512) 472-2700
rhenneke@texaspolicy.com
cweldon@texaspolicy.com
Attorneys for Plaintiffs/Appellants

Andrew B. Davis
Assistant Solicitor General
Office of the Attorney General of Texas
P.O. Box 12548, Mail Code 059
Austin, Texas 78711-2548
Andrew.Davis@oag.texas.gov
Attorneys for Intervenors/Appellants

Michael Siegel
Brandon Carr
Assistant City Attorney
City of Austin Law Department
PO Box 1546
Austin, Texas 78767-1546
Michael.siegel@austintexas.gov
Attorneys for Defendants-Appellees

/s/ Matthew R. Miller

Matthew R. Miller

CERTIFICATE OF SERVICE

The undersigned certifies that a true and correct copy of the above and foregoing Motion was served on the persons listed below by first class mail on this the 14th day of May, 2018.

Robert Henneke
Chance Weldon
TEXAS PUBLIC POLICY FOUNDATION
901 Congress Avenue
Austin, Texas 78701
rhenneke@texaspolicy.com
cweldon@texaspolicy.com
Counsel for Plaintiffs-Appellants

Andrew B. Davis
Jeffrey C. Mateer
ATTORNEY GENERAL OF TEXAS
P.O. Box 12548, Mail Code 009
Austin, Texas 78711-2548
Andrew.Davis@oag.texas.gov
Counsel for Intervenor-Appellants

Michael Siegel
Brandon Carr
Assistant City Attorney
CITY OF AUSTIN Law Dept.
P.O. Box 1546
Austin, TX 78767-1546
Michael.siegel@austintexas.gov
Brandon.carr@austintexas.gov
Counsel for Defendants-Appellees

/s/ Matthew R. Miller

Matthew R. Miller